

§ 1942.5, subdivisions (d) and (e).

As in *Drouet*, the instant matter requires harmonizing the Ellis Act with the retaliatory eviction statute. In *Drouet*, after the tenants requested repairs, the landlord served notices withdrawing the units from the rental market, and the tenants asserted retaliatory eviction. (Id. at p. 588.) The Supreme Court held that when a landlord complies with the Ellis Act and initiates an unlawful detainer action, the landlord may overcome a retaliatory-eviction defense by demonstrating a bona fide intent to withdraw the property from the market. If the tenant controverts this intent, the landlord bears the burden of establishing its truth by a preponderance of the evidence. (Id. at pp. 599–600; Civ. Code, former § 1942.5, subd. (e).) On remand, the trial court was directed to determine first whether the landlord’s withdrawal intent was bona fide; if so, the retaliatory-eviction defense fails. (*Drouet*, supra, at p. 600.)

Here, the evidence supporting Plaintiff’s bona fide intent to withdraw the property—which the Court expressly considered—includes the Declarations of Michele Karakas, Rosalinda Callejas, and Counsel Ghantous, along with the attached medical records and physician letters concerning Ms. Callejas’ health. This evidence is undisputed. The trial court found, and the record supports, that Plaintiff met her burden of proof. The Court finds that Plaintiffs have a bona fide intent to take the subject property off the market. Accordingly, the retaliatory-eviction defense is defeated as a matter of law.

Defendant, to create a triable issue, was required to produce more than speculative or credibility-based attacks on Plaintiff’s evidence. (§ 437c, subd. (e).) An issue of fact arises only from a genuine conflict in competent evidence. (*Lewis v. County of Sacramento* (2001) 93 Cal.App.4th 107, 116.) Defendant Rudd, however, presented only bare assertions unsupported by admissible documentary evidence, including uncorroborated allegations of habitability complaints. To the extent Defendant’s position hinges on credibility, the trial court was entitled to—and did—find credible Plaintiffs’ showing that Defendant manufactured proofs of service and falsified notices.

Because Plaintiff presented undisputed evidence establishing a bona fide intent to withdraw the property from the rental market, and because Defendant failed to raise a triable issue of fact, the trial court correctly concluded that Plaintiff satisfied her burden under section 437c. The summary judgment ruling is therefore properly clarified and the order granting summary judgment and possession is confirmed.

11. 9:00 AM CASE NUMBER: N25-1657

CASE NAME: CLAIM OF:ISAIAH CEJA

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Silvia Marison Ceja’s Petition for Approval of Compromise of Minor Isaiah Ceja’s (“Minor”) Claim filed on August 19, 2025, is **granted**, as set forth below. No appearance is required at the hearing of this Motion on December 3, 2025.

Background

On August 19, 2025, Petitioner Silvia Marison Ceja, guardian *ad litem* for Minor, filed the Petition through counsel Robert Buzzard, Esq., to compromise the claim that Minor had against Defendants Ellen and Pacifico Palacay related to an accident that occurred on June 20, 2021 at Contra Loma Regional Park, Antich, CA. In that accident, Minor sustained injuries to the back of his head after he was struck by a bicycle being driven by the one of the defendants during a bicycle-pedestrian accident. Minor has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$30,000, of which \$16,970.52 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$13,029.48 represents a negotiated deduction from the settlement used to satisfy liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on August 19, 2025. No appearance is required at the hearing on December 3, 2025.

Discovery Law & Motion

12. 9:01 AM CASE NUMBER: C24-01736

CASE NAME: MELINDA HALL VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: HALL, MELINDA OLAIA

TENTATIVE RULING:

Summary

Plaintiff Melinda Olaia Hall's ("Plaintiff") Motion to Compel Further Responses to Request for Production of Documents, Set one, from Defendant FCA LLC ("Defendant" or "FCA") is **granted**.

Background

In this case, Plaintiff alleges that the 2022 Jeep Wrangler vehicle she purchased, which was manufactured and distributed by Defendant, suffers from widespread defects and that Defendant has been unable to repair the vehicle within a reasonable number of attempts. Plaintiff further alleges that Defendant knew that the vehicle suffered from the prevalent defects, but nevertheless refused to repurchase the vehicle before the case was filed—a willful violation of the Song-Beverly Consumer Warranty Act ("Song-Beverly Act").

On July 2, 2025, Plaintiff filed her Motion to Compel Further Responses to Request for Production of Documents, Set One, from Defendant. The Motion was supported by a Notice, Memorandum of Points and Authorities, Declarations of Counsel William Vollbrecht, and a separate statement. The